

UNITED STATES DISTRICT COURT
DISTRICT OF MINNESOTA

UNITED STATES OF AMERICA,

Case No. 22-cr-124 (NEB/DTS)

Plaintiff,

v.

PRELIMINARY ORDER OF
FORFEITURE

MUKHTAR MOHAMED SHARIFF (7),

Defendant.

Based on the United States' Motion for a Preliminary Order of Forfeiture, (ECF No. 679); on the Superseding Indictment, (ECF No. 57); on the evidence admitted at trial in this matter; on the Jury's verdict of Guilty on Counts 1, 8, 20, and 31 of the Superseding Indictment, (ECF No. 562); on the Declaration of Lacramioara Blackwell, (ECF No. 680); and on the Court having found that certain property is subject to forfeiture pursuant to 18 U.S.C. Section 981(a)(1)(C) in conjunction with 28 U.S.C. Section 2461(c) and 18 U.S.C. Section 982(a)(1), the United States has established the requisite nexus between such property and the offenses to which Defendant Mukhtar Mohamed Shariff has been found guilty, IT IS HEREBY ORDERED that:

1. The United States' Motion for a Preliminary Order of Forfeiture (ECF No. 679) is GRANTED;

2. A money judgment forfeiture is ENTERED against Defendant Mukhtar Mohamed Shariff pursuant to 18 U.S.C. Section 981(a)(1)(C) and 28 U.S.C. Section 2461(c), and 18 U.S.C. Section 982(a)(1), in the amount \$2,595,301.54;

3. Defendant Shariff shall receive a credit against the money judgment forfeiture for the net forfeited value of each asset that is forfeited from him in connection with this case;

4. Defendant Shariff is ORDERED to forfeit, pursuant to 18 U.S.C. § 981(a)(1)(C), 28 U.S.C. § 2461(c), and Fed. R. Crim. P. 32.2(b)(2)(C), any property, real or personal, constituting or derived from, any proceeds obtained, directly or indirectly, as a result of the wire fraud conspiracy and wire fraud scheme alleged in Counts 1 and 8 of the Superseding Indictment;

5. Defendant Shariff is ORDERED to forfeit, pursuant to 18 U.S.C. § 982(a)(1) and Fed. R. Crim. P. 32.2(b)(2)(C), any property, real or personal, involved in the Conspiracy to Commit Money Laundering charged in Count 20 of the Superseding Indictment, and any property traceable to such property;

6. Pursuant to Fed. R. Crim. P. 32.2(b)(3) and (c)(1)(B), and 21 U.S.C. Section 853(m), the United States may conduct discovery as to Defendant Shariff to identify property subject to forfeiture under the terms of this order and to address any factual issues raised by a third-party petition filed pursuant to Fed. R. Crim. P. 32.2(c);

7. Pursuant to Fed. R. Crim. P. 32.2(b)(4)(A) and (B), this Preliminary Order of Forfeiture shall become final as to Defendant Shariff at the time of sentencing, and shall be made a part of the sentence and included in the judgment; and,

8. This Court shall retain jurisdiction to enforce this Order, and to amend it as necessary pursuant to Fed. R. Crim. P. 32.2(e).

Dated: November 8, 2024

BY THE COURT:

s/Nancy E. Brasel
Nancy E. Brasel
United States District Judge